

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicholas Nord Howell	Team: Squad #17	CCRB Case #: 202405141	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 05/08/2024 6:50 PM	Location of Incident: Front of § 87(2)(b)	18 Mo. SOL 11/8/2025	Precinct: 20		
Date/Time CV Reported Fri, 05/10/2024 9:20 PM	CV Reported At: IAB	How CV Reported: E-mail	Date/Time Received at CCRB Fri, 05/24/2024 9:41 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Casey Ayrovainen	25701	972332	114 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Sean Sweeney	12679	974578	114 PCT
2. PO Brian Riggs	25603	970137	102 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Casey Ayrovainen	Abuse: Police Officer Casey Ayrovainen damaged § 87(2)(b) property.	A . Substantiated
B . PO Casey Ayrovainen	Abuse: Police Officer Casey Ayrovainen refused to provide his name to § 87(2)(b)	B . Unable to Determine
C . PO Casey Ayrovainen	Abuse: Police Officer Casey Ayrovainen refused to provide his name to § 87(2)(b)	C . Unable to Determine

Case Summary

§ 87(2)(b) filed this complaint on May 10, 2024, with IAB via email. The CCRB received this complaint on May 24, 2024.

At 6:50 PM on May 8, 2024, in the vicinity of § 87(2)(b) in Manhattan, PO Casey Ayrovainen of the 114th Precinct struck § 87(2)(b) car with a barrier while on a detail for the Barriers Section (**Allegation A: Abuse of Authority – Substantiated**). § 87(2)(b) and § 87(2)(b) both allegedly asked PO Ayrovainen for his name, but he walked away without responding (**Allegations B and C: Abuse of Authority – Unable to Determine**).

There were no arrests or summons issued as a result of this incident.

The investigation received two cellphone videos taken by § 87(2)(b) recording video from the building surveillance cameras at § 87(2)(b) (BR 01, BR 02). The investigation also received two videos from nearby TARU cameras (BR 03). There is no other video of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Casey Ayrovainen damaged § 87(2)(b) property.

Allegation (B) Abuse of Authority: Police Officer Casey Ayrovainen refused to provide his name to § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Casey Ayrovainen refused to provide his name to § 87(2)(b)

At 6:50 PM on May 8, 2024, in the vicinity of § 87(2)(b) (BR 04), § 87(2)(b) colleague, § 87(2)(b) alerted him that NYPD officers were erecting barricades along Central Park West. § 87(2)(b) and § 87(2)(b) both work as doormen at § 87(2)(b). § 87(2)(b) stood outside of the building and watched the officers because he was concerned they might damage his car, a silver SUV, which was parked directly outside of the building in a dedicated employee spot. Behind the employee spot is a bus stop marked by a pole and in front of the spot is a fire hydrant. § 87(2)(b) § 87(2)(b) and another building employee, § 87(2)(b) all stood together watching the officers. There were approximately five officers, either on a marked NYPD truck or working on the sidewalk. § 87(2)(b) noticed that PO Ayrovainen was struggling to carry the barricades and that they were swinging as he carried them. As PO Ayrovainen attempted to walk between the bus stop pole and § 87(2)(b) car, the barrier swung and struck the rear of § 87(2)(b) car. § 87(2)(b) and § 87(2)(b) both heard the collision and walked over to the vehicle. § 87(2)(b) noticed a four- to five-inch scratch on one taillight extending onto the bumper. § 87(2)(b) told PO Ayrovainen he had hit his car four to five times, but PO Ayrovainen did not respond. § 87(2)(b) then asked PO Ayrovainen for his name. Again, PO Ayrovainen did not respond. § 87(2)(b) then asked PO Ayrovainen for his name and PO Ayrovainen replied that he had not hit § 87(2)(b) car. PO Ayrovainen and the other officers then continued to set up barriers down the street.

§ 87(2)(b) provided a statement (BR 05) consistent with § 87(2)(b) with the following additions and exceptions. When the officers setting up barricades got to § 87(2)(b) § 87(2)(b) was looking away. However, he heard a loud bang and § 87(2)(b) call out to PO Ayrovainen that he had hit his car. § 87(2)(b) turned to see § 87(2)(b) approaching PO Ayrovainen. § 87(2)(b) repeated that PO Ayrovainen had hit his car, but PO Ayrovainen walked past without acknowledging § 87(2)(b). § 87(2)(b) repeated again that PO Ayrovainen had hit his car and PO Ayrovainen replied that he had not. § 87(2)(b) said that he had seen and heard the collision, but PO Ayrovainen walked away without any further interaction with any of the men. § 87(2)(b) did not recall hearing § 87(2)(b) say anything to PO Ayrovainen besides that PO Ayrovainen had struck his car. § 87(2)(b) did not recall if § 87(2)(b) spoke to any officers during this incident. § 87(2)(b) stated that he reviewed the building surveillance footage of the incident and that he is not visible in the video, but that § 87(2)(b) and § 87(2)(b) are visible.

The investigation requested multiple times for § 87(2)(b) to provide contact information

for § 87(2)(b) however, he did not cooperate. § 87(2)(b) stated that he did not have any contact information for § 87(2)(b).

§ 87(2)(b) provided the investigation with a photograph of the damage to his vehicle (**BR 06**). § 87(2)(b) highlighted the damage by drawing a circle around it using a digital markup tool. The image shows a scratch extending from the bottom of a taillight onto the rear bumper.

§ 87(2)(b) provided the investigation with a video he recorded on his phone showing building surveillance footage (**BR 01**). There is no audio to this video. At runtime 00:01 § 87(2)(b) and § 87(2)(b) stand in front of § 87(2)(b). § 87(2)(b) is wearing a white shirt and a silver vest, and § 87(2)(b) is wearing a black shirt. At runtime 00:05 PO Ayrovainen walks into frame from the right while carrying a metal barrier. PO Ayrovainen walks between a bus stop pole and a silver car and as he does so, the rear of the barrier he is carrying strikes the right side of the rear bumper of the car. PO Ayrovainen places the barrier down next to the car and begins to walk away. PO Brian Riggs of the 102nd Precinct then steps into frame and places another barrier. § 87(2)(b) and § 87(2)(b) walk to the car and look at the rear bumper. At runtime 00:40 PO Ayrovainen can be seen setting up another barrier before he walks off screen. § 87(2)(b) walks in the direction of PO Ayrovainen and appears to speak to him, but any statements are inaudible.

§ 87(2)(b) provided the investigation with a video he recorded on his phone showing building surveillance footage (**BR 02**). There is no audio to this video. At runtime 00:01 a marked NYPD truck can be seen with RMP number 9863₂₀ on the side as PO Ayrovainen and PO Riggs place barriers from the truck onto the sidewalk; PO Ayrovainen and PO Riggs are the only two officers depicted working outside of the truck.

The Barriers Section roll call for May 8, 2024 (**BR 07**), lists PO Ayrovainen, PO Riggs, and PO Sean Sweeney of the 114th Precinct as workers assigned to truck 9863. PO Michael Raffaele of the 104th Precinct is listed as the operator for truck 9863.

PO Ayrovainen stated (**BR 08**) that he was setting up barriers for a public event the following day as part of a detail with the Barriers Section; in this assignment PO Ayrovainen was responsible for setting up and removing barriers around New York City. While on the detail, a male civilian walked up behind him and told him that he had struck a car with a barrier. PO Ayrovainen told the individual that he did not know what he was talking about and continued to place barriers. The civilian did not say anything else to PO Ayrovainen and the interaction lasted approximately 30 seconds. PO Ayrovainen did not recall hitting a car with a barrier. PO Ayrovainen did not recall interacting with a second civilian during this incident. After reviewing building surveillance footage (**BR 01**) PO Ayrovainen recognized himself and saw that he inadvertently struck a car with a barrier he was holding. He did not recall anyone asking for his name.

PO Riggs, who was working the same detail as PO Ayrovainen, stated (**BR 09**) that he did not recall PO Ayrovainen striking a car with a barrier and did not recall any civilians asking PO Ayrovainen for his name. PO Riggs reviewed building surveillance footage (**BR 01**) and identified himself and PO Ayrovainen, but did not recognize § 87(2)(b) or § 87(2)(b) and did not recall any additional details.

PO Sweeney, who was working the same detail as PO Riggs and PO Ayrovainen, stated (**BR 10**) that he had no recollection of this incident. PO Sweeney stated that he was standing on the back of the truck handing barricades to PO Riggs and PO Ayrovainen and was not on the sidewalk placing the barricades.

In Onderdonk v. State, 170 Misc. 2d 155 (**BR 11**), the court held that the police can damage an individual's property if such damage is "reasonably necessary to effectuate" law enforcement duties.

It is undisputed that PO Ayrovainen struck and damaged § 87(2)(b) car. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g) . It is therefore recommended that

Allegation A be closed as **Substantiated**.

§ 87(2)(b) stated that he and § 87(2)(b) asked PO Ayrovainen for his name and PO Ayrovainen ignored them. PO Ayrovainen did not recall interacting with § 87(2)(b) or any civilian requesting his name during the incident. Neither § 87(2)(b) nor PO Riggs recalled whether § 87(2)(b) or § 87(2)(b) asked for PO Ayrovainen's name. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation B and C** be closed as **Unable to Determine**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 12**).
- Given the lack of identifying information for § 87(2)(b) the investigation was unable to determine his CCRB history.
- PO Ayrovainen has been a member of service for three years and has been a subject in one CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of October 9, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 13**).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 17

Investigator:	<u>Nicholas Nord Howell</u>	<u>Inv. Nord Howell</u>	<u>10/15/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Benjamin Shelton</u>	<u>IM Benjamin Shelton</u>	<u>10/15/24</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date